



**Eric Gonzalez**  
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**DISTRICT ATTORNEY  
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**ERICA GLENN**  
Assistant District Attorney

Re: PEOPLE V. [REDACTED]  
Kings County Dkt./Ind. No. [REDACTED]

In connection with the above-named case, the People voluntarily provide the following information regarding:

**MOS NAME: NICHOLAS CAVA**

**MOS TAX: 968320**

in satisfaction (to the extent applicable) of their constitutional, statutory, and ethical obligations. In addition to any information provided below, disciplinary information regarding this officer may exist online at the following websites: <https://www1.nyc.gov/site/ccrb/policy/MOS-records.page>, <https://nypdonline.org/link/13>, and <https://www.50-a.org>. The People make no representation regarding the accuracy of any information contained on these websites. In addition, the People have provided all lawsuits known to the People through NYPD documents, the NYC Law Department's public website of civil suits filed against officers (<https://www1.nyc.gov/site/law/public-resources/nyc-administrative-code-7-114.page>), and orally relayed to the People by officers. Please note that additional cases may or may not exist on the following public websites: <https://pacer.uscourts.gov/>, <https://iapps.courts.state.ny.us/webcivil/FCASMain>; and <https://iapps.courts.state.ny.us/nyscef/Login>. The People reserve the right to object to the use or introduction of any or all disclosures provided below and any other potential impeachment information.

The People have attached to this letter all underlying records related to the allegations contained in this disclosure letter that are in the actual possession of the Kings County District Attorney's Office, as noted below. Otherwise, KCDA's Law Enforcement Transparency Unit has submitted a request to the NYPD for Internal Affairs logs associated with the below disclosures that are not in KCDA's actual possession and will provide any such documents to the defense upon receipt.

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**Disclosure # 1:**

DATE: 9/4/2021

CONTROL NUMBER: 001

SERIAL NUMBER: OG21

IAB LOG #: 21-19469

ICMT CASE #: OG21-9951

ALLEGATION: FAIL TO NOTIFY – INTERNAL AFFAIRS BUREAU - UNSUBSTANTIATED

CLOSED DATE: 2021-10-30

ACTION TAKEN: NO ACTION TAKEN

**SEE "CAVA 968320 2021-19469 Redacted" FOR ADDITIONAL INFORMATION**

**Disclosure # 2:**

DATE: 09/03/2024

DADS #: 2024-31444

1. MOS CAVA, ON OR ABOUT APRIL 7, 2023, AT APPROXIMATELY 0010, WHILE ASSIGNED TO 060 PCT AND ON DUTY, IN A LOCATION KNOWN TO THE DEPARTMENT, ENGAGED IN CONDUCT PREJUDICIAL TO THE GOOD ORDER, EFFICIENCY OR DISCIPLINE OF THE NEW YORK CITY POLICE DEPARTMENT, IN

THAT PO CAVA SPOKE DISCOURTEOUSLY TO AN INDIVIDUAL BY STATING TO WIT "SO COME HERE THEN. FUCK ME UP, LET'S GO. YOU AIN'T FUCKING NOBODY UP," WITHOUT POLICE NECESSITY.

2. MOS CAVA, ON OR ABOUT APRIL 7, 2023, AT APPROXIMATELY 0010, WHILE ASSIGNED TO 060 PCT AND ON DUTY, IN A LOCATION KNOWN TO THE DEPARTMENT, USED OFFENSIVE LANGUAGE, IN THAT PO CAVA MADE REMARKS TO AN INDIVIDUAL BASED UPON THE PERCEIVED SEXUAL ORIENTATION OF AN INDIVIDUAL BY STATING IN SUM AND SUBSTANCE "THAT'S GAY. YOU WANT A GUY TO SUCK YOUR DICK. THAT'S GAY."
3. MOS CAVA, ON OR ABOUT APRIL 7, 2023, AT APPROXIMATELY 0010, WHILE ASSIGNED TO 060 PCT AND ON DUTY, IN A LOCATION KNOWN TO THE DEPARTMENT, ENGAGED IN CONDUCT PREJUDICIAL TO THE GOOD ORDER, EFFICIENCY OR DISCIPLINE OF THE NEW YORK CITY POLICE DEPARTMENT, IN THAT PO CAVA SPOKE DISCOURTEOUSLY TO AN INDIVIDUAL BY STATING TO WIT "SHUT THE FUCK UP," WITHOUT POLICE NECESSITY.

CASE STATUS: PENDING

**FOR CCRB DISCLOSURES SEE THIS OFFICER'S SEPARATELY PROVIDED CCRB DOCUMENT(S).**

**THE CCRB DOCUMENT(S) DISCLOSE ANY PENDING, SUBSTANTIATED, UNSUBSTANTIATED, AND OTHER MISCONDUCT NOTED ALLEGATIONS AGAINST THIS OFFICER THAT ARE KNOWN TO THE PEOPLE. THE DOCUMENTS ALSO INCLUDE, IF ANY, THE UNDERLYING CCRB DOCUMENTS IN THE PEOPLE'S POSSESSION. ALTHOUGH THE PRINT DATES ON THE CCRB DOCUMENTS MAY VARY, THE ALLEGATION HISTORY PROVIDED IS UP TO DATE THROUGH AUGUST 10, 2024, AS SUCH THE DISPOSITION INFORMATION MAY NOT BE UP TO DATE.**

Eric Gonzalez  
District Attorney  
Kings County